From hyper-incarceration to mass-incarceration? Race and the prison boom of the 1990s

Abstract

Histories of mass incarceration in Britain are normally structured around a moment of rupture in the early 1990s, when penal populism took off and prison numbers started to climb. But for Britain's black and Irish communities, expansive incarceration had been the norm since at least the 1970s. What then connects these two phenomena? How was the longer history of targeted incarceration related to this broader penal turn? Generations of activists answered this question by arguing that the state first trialled techniques of coercion on marginalised groups, before rolling them out to everyone else. But this simple, sequential logic cannot do justice to the messy web of connections between these two historical processes. Rather than trial-then-roll-out, hyper-incarceration and mass-incarceration appear as separate projects that intersect in various ways during the 1990s: in the imagery used to justify the penal turn, in the continued targeting of Britain's West Indian communities, and in the slow brutalisation of the British state. The penal turn was not the inevitable sequel to earlier experiments. What this history instead reveals is the variegated and often contradictory ways that different projects of racialisation and incarceration intersect at different historical moments.

Keywords: neoliberalism, prisons, race, racism, 1990s

1 Introduction

The 1990s are a decade that looms large in the literature on British prisons. Having fallen by 10 per cent in the late 1980s, the prison population held steady at around 45,000 people for the first three years of the following decade. But then something changed. By 1995, the prison population had reached a record high of 51,000, and growth continued at nearly 4 per cent per annum for the next fifteen years. By 2010, more than 85,000 people were crammed into Britain's crumbling Victorian prison system, a number that dwarfed that of any other state in western Europe.

It's no surprise therefore that most histories of British prisons are structured around this moment of rupture. Tim Newburn's highly influential review comes back again and again to 1993, the year that 'initiated a decade or more of populist and punitive penal policy'. For Robert Reiner, the abandonment of the Criminal Justice Act 1991 after only two years was 'one of the most rapid and complete U-turns in political history'. Jessica Jacobson and Mike Hough begin their more recent survey by stating that 'our starting point is 1993 ... the year when ... a marked disjunction from previous policies - and political mindsets about justice - began to emerge'.[1]

But for some communities in Britain, this was nothing new. When the government started collecting data on prisoners' ethnic identities in 1985, they found that black Britons were being locked up at a rate of 620 per 100,000 - more than seven times higher than the rate for white Britons, and higher even than the overall figure for today's United States. The situation for foreign nationals, the Irish and other racialised groups wasn't much better.[2]

The fact that some communities had a long history of expansive incarceration cuts against the orthodox historiography of rupture. But it also raises a fundamental question

[1] Tim Newburn, ""Tough on Crime": Penal Policy in England and Wales", *Crime and Justice* 36.1 (2007), pp. 425–470; Robert Reiner, "Crime and Control in Britain", *Sociology* 34.1 (2000), pp. 71–94; Jessica Jacobson and Mike Hough, "Missed Opportunities and New Risks: Penal Policy in England and Wales in the Past Twenty-Five Years", *The Political Quarterly* 89.2 (2018), pp. 177–186.

[2] All data compiled by the author from the annual reports of the Prison Department and its successors. For details see section 2.

about the relationship between these two phenomena, between the targeted incarceration of particular groups and the mass incarceration of the 1990s. This question echoes the wider debate about the role of race in the development of the state's tools of coercion, from the rediscovery of Aimé Césaire's 'terrific boomerang' to recent publications by Julian Go, Adam Elliott-Cooper and others.[3] So far, much of this work has focussed on the evolution of the police - tracing the way that techniques, tactics and institutions first used against racialised minorities were normalised and then deployed against broader sections of the population. But a similar pattern of trialling-then-expanding is often assumed to be at work in the history of the prison.[4]

This assumption is often bundled up with a conflation English and American prison history.[5] Across the Atlantic, the incredible growth of the prison population was accompanied by a total reversal in the kinds of people being locked up. In the 1950s, 70 per cent of prisoners were white, but today 70 per cent are black or Latino.[6] Racism has therefore become a central thread in the story of American mass incarceration, linking the demise of slavery and the invention of convict leasing to the "law-and-order" backlash against the civil rights movement, the abandonment of the inner cities in the 1970s and the use of prisons to warehouse new surplus populations.[7] And such is America's dominance in

[3]Aimé Césaire, *Discourse on Colonialism*, New York: Monthly Review Press, 2000; Julian Go, "The Imperial Origins of American Policing: Militarization and Imperial Feedback in the Early 20th Century", *American Journal of Sociology* 125.5 (2020), pp. 1193–1254; Adam Elliott-Cooper, *Black Resistance to British Policing*, Manchester: Manchester University Press, 2021; Orisanmi Burton, *Tip of the Spear: Black Radicalism, Prison Repression, and the Long Attica Revolt*, Oakland, CA: University of California Press, 2023; Loïc Wacquant, "Punish to Rule: Colonial Penality and the Urban Badlands", *New Left Review* 152 (2025), pp. 111–141.

[4]John Moore, "Is the Empire coming home? Liberalism, exclusion and the punitiveness of the British State", *Papers from the British Criminology Conference* 14 (2014), pp. 31–48; Aviah Sarah Day and Shanice Octavia McBean, *Abolition Revolution*, London: Pluto Press, 2022.

[5]To take three high-profile examples: John Pratt talks of the 'Anglo-American world', Michael Tonry of all 'English-speaking countries', while David Garland's 'culture of control' covers both Britain and the United States. See: John Pratt, "Scandinavian Exceptionalism in an Era of Penal Excess: Part I: The Nature and Roots of Scandinavian Exceptionalism", *The British Journal of Criminology* 48.2 (2008), pp. 119–137; Michael Tonry, "Determinants of penal policy", in: *Crime, Punishment, and Politics in Comparative Perspective*, ed. by Michael Tonry, Chicago: Chicago University Press, 2007; David Garland, *The Culture of Control: Crime and Social Order in Contemporary Society*, Chicago: Chicago University Press, 2011.

[6]Loïc Wacquant, "Deadly Symbiosis: When Ghetto and Prison Meet and Mesh", *Punishment & Society* 3.1 (2001), pp. 95–133. Updated statistics from the Department of Justice.

[7]In order: Angela Y. Davis, *Are Prisons Obsolete?*, New York: Seven Stories Press, 2003, chapter 2; Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Colorblindness*, New York: The

cultural and academic production, that this story has tended to overshadow our own parochial history, collapsing them into one 'Anglophone norm'.[8]

But the story of Britain's penal turn differs from those American narratives in several ways. First, the prison boom of the 1990s did not lead to an increase in disproportionality. In fact, as the prison population grew, incarceration rates for black and white Britons, for citizens and non-citizens, started to converge. British prison history thus echoes a theme that is at the heart of much recent scholarship: the uneasy co-existence of multiculturalism and racism.[9] In the 1990s, this tension was manifest in a series of contradictions - falling penal disproportionality and rising black incarceration, expanding migration and tightening borders, the botched investigation into Stephen Lawrence's murder and the Macpherson Report - a messy ensemble that marked Britain's distinctive entry into the twenty-first century. Second, Britain's underlying system of racialisation departs from the American model in several respects.[10] In what follows I will highlight the specificities of Irish imprisonment, the different incarceration rates of black and south Asian Britons, and of people of West Indian and African heritage. But there are many others ways that British racism differs from that of the United States, and we would do well to remember them.

This essay is therefore an attempt to move beyond narratives of rupture and also to challenge the elision of American and British penal history. It traces the different ways that race - using the noun as a shorthand for the different projects of racialisation spread across British society - has figured in the recent evolution of the prison system. In par-

New Press, 2010; Loïc Wacquant, "The New Peculiar Institution: On the Prison as Surrogate Ghetto", *Theoretical Criminology* 4.3 (2000), pp. 377–389; Ruth Wilson Gilmore, *Golden Gulag: Prisons, Surplus, Crisis, and Opposition in Globalizing California*, Oakland, CA: University of California Press, 2007.

[8]Louise Brangan, "Exceptional states: The political geography of comparative penology", *Punishment & Society* 22.5 (2020), pp. 596–616. Anti-racist organisers have often made the same move. To take one example, the Prison Liberation Front manifesto, which was written by a prisoner called Wadi Williams in 1979 and then smuggled out of HMP Wandsworth, begins with a series of quotes by Angela Davis and George Jackson and then transposes their analysis directly to Britain. See BCA, RC/RF/17/02/A: Prison Liberation Front Manifesto (unpublished manuscript, 1979) and Rob Cowan, "Blacks against prison tyranny", The Leveller No. 26, May 1979.

[9]Les Back, *New Ethnicities and Urban Culture*, London: Routledge, 1996; Paul Gilroy, *After Empire: Melancholia or Convivial Culture?*, London: Routledge, 2004; Kieran Connell, *Multicultural Britain: A People's History*, Oxford: Oxford University Press, 2024.

[10]Loïc Wacquant, "Resolving the Trouble with 'Race'", *New Left Review* 133/134 (2022), pp. 67–88.

ticular, it explores the connections between the penal turn of the 1990s and those earlier waves of targeted imprisonment, between *mass*-incarceration and what Loïc Wacquant famously called *hyper*-incarceration. For Wacquant, this term was an attempt to emphasise the 'triple selectivity' of the American prison system, the fact that incarceration is 'finely targeted, first by class, second by race, and third by place'.[11] Of course, these same biases also apply here. But by juxtaposing the two terms, I want to emphasise the different trajectories taken in Britain and the United States. It is this difference in direction of travel - rather than a blindness to ongoing racism - that frames the specific question this essay seeks to address: Did hyper-incarceration-for-some pave the way to mass-incarceration-for-all?

I begin this story in the 1970s, a time when race was already central to people's experience of imprisonment. But despite an escalating campaign of incarceration targeting black and Irish communities, this was not a time of massive penal expansion. In fact, the growth of the prison estate *decelerated* significantly in this period. This contradictory pattern continued into the 1980s, when Margaret Thatcher's authoritarian use of the police was matched by a serious effort to reduce the overall number of people ending up in prison. The early 1990s then marked a shift from this pattern of targeted incarceration to something more massified, accompanied by declining rates of disproportionality and legitimised by a moral panic about social breakdown in (white) working-class communities. But this doesn't mean that race played no role in the expansion of the prison system after 1993. Instead it left traces in the imagery used to describe this moral panic, in the continued targeting of Britain's West Indian communities, and in the slow brutalisation of the British state after years of increasing authoritarianism. This is a diffuse web of connections, often indirect and obscured, operating at different scales and in different ways throughout the mesh of the British state. And while they do not constitute a sufficient explanation for the penal turn, they nonetheless reveal the important role played by race in the development of Britain's own distinctive version of mass incarceration.

[11] Loïc Wacquant, "Class, race & hyperincarceration in revanchist America", *Daedalus* 139.3 (2010), p. 74.

2 Sources and data

The quantitative components of this essay are based on administrative data collected by the Home Office from prisons in England and Wales. (Prisons in Northern Ireland and Scotland are managed separately, have a distinct history and will not be addressed here.) Since the 1980s, everyone who enters the prison system has been assigned to one of a set of predefined racial categories as part of processing. At first, this assignment was done largely by prison officers, but since 1992 more emphasis has been put on prisoners' self-identification (with officers only entering data if the prisoner refuses to do so). Using this data to track the ethnic and racial composition of the prison population comes with a series of practical and theoretical challenges and, to emphasise this fact, I will use scare quotes whenever I use terms like "black" or "white" to refer to administrative categories. In contrast, when I use the terms black, white, etc in a more expansive sociological sense - to refer to the messy reality of communities and identities - I will leave them without scare quotes or any other special punctuation.

At the level of theory, the central problem with this kind of analysis is that it risks reifying those administrative racial categories, implying, for example, that whiteness is a clearly-bounded, naturally-occurring thing, rather than a loosely defined and constantly contested project. Take, for example, the position of Irish prisoners (who would be classified as "white" in the official statistics but in practice may have been seen as a separate ethnic group within the prison system) or the divergent experiences of African and West Indian communities. These administrative categories also have the effect of effacing differences *within* each racialised community. In this case, it is overwhelmingly young, working-class men who end up in prisons and they will be at the heart of most of the analysis below. But this is only a partial view and does not account for the full spectrum of interactions between race, class, age and gender.

There are also various practical challenges with using this administrative data. First, the British state only started to record prisoners' ethnicity in 1985 and, while there are various informal estimates from the 1970s and early 1980s, this necessarily limits the temporal scope of my argument. Second, the racial and ethnic categories used by the

prison system have also changed over time and I therefore have to produce two separate time series: one from 1985 to 2001, and another from 2004 to today.[12] Third, the number of prisoners in the "Other, not recorded (including refusals)" category fell rapidly in the late 1980s as the system for recording prisoners' ethnicity became better established and less controversial.[13] It is likely therefore that the number of ethnic minority prisoners recorded in the mid to late 1980s is an underestimate. As a crude correction, I add half of those listed as "Other" to the "black" category and one quarter to the "South Asian" category. Fourth, in order to calculate different *rates* of incarceration, I need something to use as the denominator. Following established practice, I use data from national censuses to measure the ethnic and racial composition of the population as a whole (using linear interpolation to obtain annual figures).[14] The introduction of the "mixed" identity category in the 2001 census creates a break in that series, and so I rely on the consistent estimates for England produced by Phil Rees and Faisal Butt for 1981 to 2001, and the main census results for England and Wales thereafter.[15] This data is summarised in Table 1.

Finally, rather than attempting to develop an original periodisation of British penal history, I take three decades - the 1970s, 1980s and 1990s - as my units of analysis. As the historian Chris Wickham has argued, working within an artificial span of time helps to ensure that 'changes can be tracked in different ways in different places, without them having to lead teleologically to some major event at the end'.[16] More directly, this approach echoes David Geiringer and Helen McCarthy's call to 'rethink Britain's 1990s',

[12]From 1985 to 1990, the data was grouped into five possible identities: White - West Indian / Guyanese / African - Indian / Pakistani / Bangladeshi - Chinese / Arab / Mixed - Other, not recorded (including refusals). Between 1991 and 2003, the groupings were slightly revised: White - Black - South Asian - Chinese and other - Unrecorded. The major change comes in 2004 when a stand-alone "Mixed" category was introduced, creating a new six-category system: White - Mixed - Black or Black British - Asian or Asian British - Chinese or other ethnic group - Not stated/Unrecorded. Given my focus on black and south Asian incarceration rates, I collapse the first two series into one running from 1985 to 2001 (ending there because of changes to census recording practices), and then construct another series running from 2004 to today.

[13]The number fell from more than 2,000 in 1985, to 1,200 the following year, and less than 100 in 1993.

[14]Paul Quinton, "From Estimating to Explaining and Eliminating Ethnic Disproportionality in Stop and Search", *The Political Quarterly* 95.3 (2024), pp. 489–497.

[15]Phil Rees and Faisal Butt, "Ethnic change and diversity in England, 1981–2001", *Area* 36.2 (2004), pp. 174–186.

[16]Chris Wickham, *Medieval Europe*, New Haven: Yale University Press, 2016, p. 5.

Table 1: The racial composition of prisons in England and Wales, 1985-2023

	Per cent of prisoners			Incarceration rate per 100,000		
	White	Black	S. Asian	White	Black	S. Asian
1985	83	10	3	88	620	132
1987	84	11	3	94	638	125
1989	82	12	3	89	678	118
1991	83	11	3	83	555	98
1993	83	11	3	82	511	86
1995	83	12	3	94	566	88
1997	82	12	3	112	669	101
1999	81	12	3	117	658	98
2001	79	14	3	116	719	95
2004	69	13	5	107	740	134
2006	73	15	7	119	786	158
2008	72	15	7	125	762	160
2010	72	14	7	127	649	150
2012	72	13	7	128	588	146
2014	73	13	8	129	532	144
2016	74	12	8	129	489	141
2018	73	13	8	124	464	129
2020	72	13	8	118	435	117
2022	72	13	8	119	408	116
2023	73	12	8	126	414	117

Notes: Data compiled from annual reports of the Prison Department for England and Wales and from UK annual censuses by the author. Values for the "Black" and "South Asian" columns have been adjusted to correct for the declining number of "Other, not recorded (including refusals)" respondents, half of whom were added to figure for "Black" prisoners and one quarter to the figure for "South Asian" prisoners. Some of these series are graphed in Figure 2.

not as 'a coherent periodisation' but rather as a 'lens for thinking more broadly about change and continuity at the end of the twentieth century'.[17]

3 The 1970s: Riots and race relations

In September 1976, HMP Hull - an austere Victorian prison next to Alexandra Dock in the east of the city - became the site of Britain's largest prison riot for more than forty years. After rumours spread that a prisoner had been assaulted by guards in the segregation unit, a group of fellow inmates demanded that they be allowed to see him. The governor refused their demands and so the protesters engaged in a sit-in, preventing the guards from locking some of the doors to Wing A. Over the next few hours this confrontation escalated and, when prisoners found and read their psychiatric files, the situation exploded with prisoners occupying the roof and most of the building for the next four days (see Figure 1).[18] At least sixty prisoners were formally punished for participating in the riots, and seven officers were found guilty of revenge attacks in the days after. Much of the public discussion focussed on the brutality of the regime inside HMP Hull, the perceived weaknesses of the 'dispersal' system for long-term prisoners, and the involvement of a small group of IRA members.[19] But accounts by prisoners themselves also drew attention to the role of race. To take just one example, J.B. MacPhee, a prisoner in HMP Hull at the time, wrote:

> There were a number of screws who were members of the National Front and openly boasted about it. In fact, after the surrender the black and Irish prisoners really got it worse ... He was in a cell below me but I could hear

[17]David Geiringer and Helen McCarthy, "Beyond the end of history: rethinking Britain's nineties", *Contemporary British History* 38.4 (2024), p. 521.

[18]Gordon Fowler, *Report of an Inquiry by the Chief Inspector of the Prison Service into the cause and circumstances of the events at H.M. Prison Hull during the period 31st August to 3rd September, 1976*, London: Her Majesty's Stationery Office, 1977; PROP, ed., *Don't Mark His Face: The account of the Hull Prison Riot (1976) and its brutal aftermath by the prisoners themselves*, London: The National Prisoners Movement (PROP), 1979.

[19]See J. E. Thomas, "Hull '76: Observations on the Inquiries into the Prison Riot", *Howard Journal of Penology and Crime Prevention* 16.3 (1978), pp. 123–133; Parliamentary Debates (Commons), 936, 28 July 1977, 1226-1241.

Figure 1: Prisoners on the roof of HMP Hull, 1976 (Image reproduced from PROP *Don't Mark His Face* [1979])

> him screaming and the screws with their racial abuse, "This is what we do to niggers", and "National Front rule, O.K. nigger" ... Nigel Simmons and Mick Russell (another black man) were beaten ... Jake Prescott was beaten up for shouting at the screws who were beating the Irish prisoners. These Irish prisoners were made a special case, they were forced onto hands and knees and told to sing 'God Save the Queen' and beaten for refusing.[20]

These testimonies show that race was, at the time, an important lens through which prisoners interpreted their experience of incarceration. This was not necessarily new and, in particular, the idea of a distinctive Irish presence in British jails goes back to at least the nineteenth century.[21] But this was made particularly salient by the Prevention of Terrorism Act 1976, which allowed the police to detain people suspected of IRA activity

[20]PROP, *Don't Mark His Face*, pp. 41–44.

[21]Matthew Russell, "The Irish Delinquent in England", *Studies: An Irish Quarterly Review* 53.210 (1964), pp. 136–148; Anna Bryson, Kieran McEvoy, and Allely Albert, "Political Prisoners and the Irish Conflict 100 Years On", *The Howard Journal of Crime and Justice* 60.S1 (2021), pp. 79–91.

without charge. Over the next six years, 5,555 were detained under these powers, with less than 2 per cent ever being charged.[22]

The 1970s were also a pivotal decade for black and south Asian political organising, beginning with the systematic repression of the organised Black Power movement and culminating in a powerful, broad-based and diffuse wave of consciousness-raising, community organising and workplace initiatives.[23] In this context, it was perhaps inevitable that prisons would also become sites of political activity. When Tony Soares, founding member of the Universal Coloured Peoples' Association, was locked up for distributing anti-Vietnam war pamphlets in 1970, he discovered black prisoners 'screaming out for literature' by figures like Malcolm X and Eldridge Cleaver and organising small Black Power groups of their own.[24] By the end of the decade, black prisoners were playing a leading role in organising protests and strikes at Wormwood Scrubs, HMP Hull and HMP Gartree.[25]

The importance of this wave of political organising was not lost on prison service itself. The chief inspector of prisons, Gordon Fowler, placed much of the blame for the Hull riot on the growing number of 'litigious and politically motivated prisoners'.[26] The Prison Service Journal's special issue on "Minorities" from July 1979 carried an article on "The Politically Motivated Prisoner" in which David Waplington of the Prison Service College reported that 'our prisons [are] being actively used against the State', placing particular blame on 'black militant groups'.[27] This tendency to see any form of black political expression as a threat to "control" was exacerbated by an active National Front presence amongst prison guards. It is difficult to be certain how widespread this was, but there are

[22]Black Cultural Archives, Brixton, London (hereafter BCA), Dadzie/6/3, 'Local authorities and Penal Institutions - a race dimension', report by the Greater London Council's Ethnic Minorities Unit (1984/5).

[23]Ambalavaner Sivanandan, "From resistance to rebellion: Asian and Afro-Caribbean struggles in Britain", *Race & Class* 23.2-3 (1981), pp. 111–152.

[24]BCA, Wong/9/4, "18 months in prison on a trumped up charge", *The Red Mole*, August 1970, pp 6-7.

[25]BCA, RC/RF/17/02/A, Paul Gordon, "Racism in Prisons", *The Abolitionist* No 14, August 1983.

[26]Fowler, *Report of an Inquiry*, para. 253.

[27]BCA, RC/RF/17/02/A, David Waplington, "The Politically Motivated Prisoner", *Prison Service Journal* No. 35, July 1979, Theme: Minorities.

reports from the late 1970s of National Front branches in at least seven prisons.[28] Since then, news of prison officers joining far-right groups has become a perennial scandal. In 1984, researchers at Winson Green prison in Birmingham observed thirty officers wearing gollywog badges, an infamous symbol of the National Front.[29] In 2023, an officer from HMP Armley was jailed for possession of a White Resistance Manual containing 'detailed advice on how to kill people in a race war'[30] As many activists at the time noted, the line between state racism and far-right groups is often blurred, particularly inside the prison.[31]

It was in this context that "race relations" came to be seen as a growing problem by the prison authorities. It's difficult to get a clear sense of the number of black people in England's prisons as the Home Office did not start collecting data until the 1980s, but the estimates that do exist suggest a clear upward trend: Pentonville is reported to have gone from 2 per cent "black" in the late 1950s to 45 per cent by 1970; HMP Brixton was estimated to be 20 per cent "black" in 1974 and 30 per cent in 1982; in 1981, campaigners reported that 17 per cent of the total prison population was "black", with HMP Wandsworth and Wormwood Scrubs at over 20 per cent and some detention centres and borstals at nearly 60.[32] Black prisoners also seem to have become increasingly concentrated in the parts of the prison system that were linked to the border. The Black Prisoners' Welfare Scheme claimed that, by the late 1970s, Pentonville's deportees wing had become disproportionately black, stating that 'prison and deportation have almost now become synonymous for black people' and describing cases of prisoners who had

[28]BCA, RC/RF/17/02/A, Black Prisoners Welfare Scheme report (n.d.), "Black people in British prisons" and Marcia Whittingham, "Racist Police, Courts, Prisons", *The Abolitionist* No 5, Summer 1980. A detailed survey of the archival evidence concerning prison officers' affiliations with the National Front can be found in Liam Liburd, "Incarcerating the Crisis: Prisons, Race, and Fascism in 1970s Britain", in: *History and Law Hub Seminar*, Kings College London, 2025.

[29]BCA, RC/RF/17/02/A, Graham Minnis and Mark Manley, *Pleasant Surprise: Report of a two-week placement at Winson Green* (Edge Hill College, Ormskirk: 1984).

[30]Chris Baynes, "Neo-Nazi prison officer jailed for having white supremacist 'murder manual'", *BBC News* (2023).

[31]Liburd, "Incarcerating the Crisis".

[32]BCA, RC/RF/17/02/A, Ron Phillips, "The black prisoner"; "18 months in prison on a trumped up charge"; Martin Kettle, "The racial numbers game in our prisons", *New Society* vol. 61 no. 1037, September 30 1982; Trevor Hercules, "I hereby sentence you".

served their jail time but were still in prison waiting to be deported to Jamaica, a country with which they had no real connection.[33]

As early critics made clear, the problem identified by the Home Office under the heading of "race relations" wasn't the structural racism of the British state, but the particular "control challenge" posed by politically conscious black prisoners and by the growing number of "racial incidents" in the estate.[34] Participants at seminars for prison governors organised by the Home Office in the late 1970s were presented with extracts from an investigation into the Attica prison uprising in the United States which spoke in apocalyptic terms of 'a new breed of younger, more aware inmates, largely black, who came to prison full of deep feelings of alienation and hostility against the established institutions of law and government, enhanced self-esteem, racial pride and political awareness, and an unwillingness to accept the petty humiliations and racism that characterise prison life'.[35] The prison system's solution to these problems seems to have been dispersal, with Paul Gordon of the Runnymede Trust reporting that '30 per cent had been bandied around as being the maximum proportion of black prisoners which was desirable in any one borstal or prison'.[36]

This means that the 1970s saw a rapid increase in the number of black prisoners, while race (and "race relations") came to be an increasingly important factor in prison life. But at the same time, the growth of the overall prison population was actually slowing down. After the "de-carceration" of the 1920s and 1930s, World War II triggered a dramatic shift in the prison system. By the end of the war, the prison population had grown from 10,000 to 15,000, and by 1950 it was over 20,000 (see Table 2). It then grew by a further 32 per cent up to 1960, and another 44 per cent up to 1970. But then the growth started to slow, falling to just 8 per cent in the 1970s. This means that, at a time when British society was going through a protracted economic and political crisis and

[33]BCA, RC/RF/17/02/A, *Black people in British prisons* report by the Black Prisoners' Welfare Scheme (no date).

[34]Gordon, "Racism in Prisons".

[35]Quoted in Kettle, "The racial numbers game in our prisons".

[36]Gordon, "Racism in Prisons".

when the state was relying more and more on repression to enforce its rule, the prison system was increasingly out of sync with the rest of the state's coercive apparatuses.[37] To mis-use Stuart Hall, the state was policing the crisis rather than imprisoning it.

Table 2: Prison growth rates in England and Wales, 1940-2020

	Prison population			Incarceration per 100,000		
	Number	*Absolute growth*	*Per cent change*	Rate	*Absolute growth*	*Per cent change*
1940	9,377			24		
1950	20,474	*+11,097*	*+118*	47	*+23*	*+96*
1960	27,099	*+6,625*	*+32*	59	*+12*	*+27*
1970	39,028	*+11,929*	*+44*	80	*+21*	*+35*
1980	42,264	*+3,236*	*+8*	85	*+5*	*+7*
1990	44,975	*+2,711*	*+6*	89	*+4*	*+4*
2000	64,602	*+19,627*	*+44*	124	*+35*	*+39*
2010	84,725	*+20,123*	*+31*	152	*+28*	*+23*
2020	80,366	*-4,359*	*-5*	135	*-18*	*-12*

Notes: Data compiled from annual reports of the Prison Department for England and Wales. Population figures from Office for National Statistics 'UK population estimates, 1838 to 2020' (2021), Table 7: Population estimates for England and Wales, by sex, mid-1838 to mid-2020.

4 The 1980s: Thatcher's contradictions

These contradictory trends continued during Margaret Thatcher's time as prime minister. Today, Thatcher is often depicted as the hard face of the neoliberal transition, associated with the triumph of law-and-order politics and a strategy of 'authoritarian populism' that triggered rebellions from Brixton to Orgreave.[38] Her reign is famous for the way the police

[37]Stuart Hall, "The Great Moving Right Show", *Marxism Today* (1979), pp. 14–20; Stuart Hall, "Thatcherism: A New Stage?", *Marxism Today* (1980), pp. 26–28; Stuart Hall, "Drifting into a law and order society", in: *Cobden Trust Human Rights Day Lecture*, 1980.

[38]Stuart Hall, "Summer in the City", *New Socialist* (1981), pp. 4–7; Bob Jessop et al., "Authoritarian Populism, Two Nations, and Thatcherism", *New Left Review* 1.147 (1984), pp. 32–60; Ian Bruff, "The Rise of Authoritarian Neoliberalism", *Rethinking Marxism* 25.1 (2013), pp. 113–129. More generally on the history of neoliberalism and its connection to authoritarianism see David Harvey, *A Brief History of Neoliberalism*, Oxford: Oxford University Press, 2005, chapter 3.

were deployed to crush industrial disputes and the last remnants of the counterculture, and for the role she played in the solidifying a popular narrative connecting crime with racialised depictions of the inner-city.[39] This was the time when techniques developed by colonial police in Northern Ireland and Hong Kong were brought back to the mainland, as rubber bullets, tear gas, snatch squads and mass arrests were rolled out in England's black and south Asian urban centres.[40] But Thatcher's record on prisons looks quite different.

Between Thatcher winning election in 1979 and losing a leadership challenge in 1990, the prison population barely changed, moving from 42,220 to 44,975 - an annual growth rate of less than 0.6 per cent. Her first government extended parole in a deliberate bid to reduce prison numbers, took pains to distinguish between "serious" and "non-serious" crimes, reintroduced a prison inspectorate, and drove up living standards inside prison walls. Numbers briefly rose again after 1985, but by the end of the decade Thatcher had started to emphasise prevention rather than punishment, significantly reduced short- and medium-term imprisonment, and published a series of White Papers aimed at diverting young adult offenders away from custodial sentences altogether.[41]

This was also the time when the prison service started, however imperfectly, to address racism in its own ranks. In 1981, the Home Office issued Circular Instruction No. 28/1981, which committed 'to ensure all prisoners understand that they will be treated on the same basis regardless of differences in race, colour or creed'. It went on to require every prison to appoint a race relations liaison officer and encouraged staff and governors to take up training.[42] In 1982, the Parole Board issued a stern letter reprimanding prison guards for a 'number of cases in which prison reports about parole candidates (on Form LB2) have included offensive prejudicial or irrelevant references to racial or ethnic origin'.[43] In 1983,

[39]Stuart Hall, "Authoritarian Populism: A Reply", *New Left Review* 1.151 (1985), pp. 115–124; Paul Gilroy, *There Ain't No Black in the Union Jack: The Cultural Politics of Race and Nation*, London: Unwin Hyman, 1987.

[40]Elliott-Cooper, *Black Resistance*, chapter 1.

[41]John Pratt, *Punishment and Civilisation*, London: Sage, 2002, chapter 9.

[42]BCA, RC/RF/17/02/B, Circular Instruction No. 28/1981, 'Race Relations'.

[43]BCA, RC/RF/17/02/A, PROP Prison Briefing No. 3 (1982).

they rescinded the controversial earlier guidance on Rastafarianism and issued a pledge stating that the prison service was opposed to 'any display of racial prejudice, either by word or conduct, by any member of the Service in his dealings with any other person'.[44]

None of this meant that racism disappeared from the prison system. Indeed, the limits of these policies was often written into them. The 1981 Circular Instruction let slip its true ambitions when it stated that one of its key priorities was to ensure that prisoners 'will not be allowed to exploit such [racial] differences to their own advantage'. The 1982 Parole Board letter suggested that 'where a parole report is found to contain an inappropriate reference to race, the officer concerned should be asked to re-write this part of the report, omitting the comment'.[45] Critics also emphasised the limits of the new Prison Inspectorate, which was led by former colonial administrators and failed to address 'the issue of institutionalised racism in the prison system which manifests itself in relation to the kinds of jobs black people are given, the medical treatment they receive, the question of racial attacks on black prisoners and the issue of National Front membership amongst prison officers'.[46]

But if the 1980s ultimately saw more continuity than change in the relationship between race and incarceration, one major innovation was the collection of comprehensive data on the racial composition of the prison population (see Table 3). This data was first published in 1985 and was a visceral demonstration of the scale of racial disproportionality: at a time when "ethnic minorities" accounted for only 5 per cent of the population, they made up 17 per cent of prisoners. But significantly, this disproportionality did not affect all minorities equally. The incarceration rate for "black" people was 620 per 100,000, while for "south Asians" it was just 132 per 100,000. (The figure for "white" folk was 88 per 100,000.) This supported the long standing claims of activists that the prison system

[44]BCA, RC/RF/17/02/B, Circular Instruction No. 2/1983, 'Guidance on treatment of inmates belonging to religious and other minorities', Circular Instruction No 56/1983, Race Relations. In 1976 the Home Office had effectively ruled that Rastafarianism should not be counted as a religion, instead likening it to 'new and changing fashions' and the 'hippie cults of Beatles-mania' (Circular Instruction on Rastafarianism, July 1976 (HO 60/FP176) in BCA/RC/RF/17/02/B).

[45]Circular Instruction No. 28/1981; PROP Prison Briefing No. 3 1982.

[46]BCA, Osamor/1, Joe Sim, "Watching the Prison Wheels Grind: The 1984 Report of Her Majesty's Chief Inspector of Prisons", *The Abolitionist* No. 21, 1986.

was being targeted at black and West Indian communities in particular. As in the 1970s, there are also indications of a significant overlap between ethnic categories and nationality: while roughly 95 per cent of "white" prisoners were born in the UK, the figure was just 68 per cent for "black" prisoners and 35 per cent for "south Asian" prisoners.[47]

Table 3: Unadjusted data on prisoners' ethnicity, England and Wales, 1985-1990

	White	West Indian etc	Indian etc	Chinese etc	Other etc	Total
1985	39,383	3,854	1,080	1,059	2,097	47,473
1986	38,998	4,105	1,290	1,034	1,208	46,635
1987	42,041	4,753	1,355	996	1,120	50,265
1988	41,185	4,869	1,358	1,014	1,152	49,578
1989	39,694	5,341	1,351	962	1,184	48,532
1990	36,400	5,002	1,275	897	949	44,523

Notes: Data compiled from annual reports of the Prison Department for England and Wales by the author. This data is unadjusted - see 'Sources and data' section for discussion of the declining number of cases where race was not recorded. The full columns headers are: White; West Indian, Guyanese, African; Indian, Pakistani, Bangladeshi; Chinese, Arab, Mixed; Other, not recorded (including refusals); Total.

The other important fact was the divergent trends of white and black incarceration during this period. Even after adjusting for the changes in 'unrecorded' or 'refused', the number of "black" prisoners increased by nearly 12 per cent between 1985 and 1990, while the figure for "white" prisoners fell by more than 8 per cent. This suggests that, as in the 1970s, hyper-incarceration did not immediately lead to mass-incarceration. But that was about to change, as incarceration rates for both groups exploded after 1993. The question is what role did this longer history of racially targeted incarceration play in that broader penal turn?

[47] *The Ethnic Origins of Prisoners: The prison population on 30 June 1985 and persons received, July 1984-March 1985*, Home Office Statistical Bulletin, Issue No. 17/86 (June 1986): Table 20.

5 The 1990s: Mass incarceration

When prison numbers started to climb in the mid 1990s, it confirmed what many activists had long predicted. The "Manifesto of the Movement for Civil Rights and Justice", issued by residents of the Broadwater Farm estate after the riots in 1985, declared that: 'Historically, the state has practised techniques of repression and control on Irish and Black communities before going on to use them against other, better organised sections of the working class'.[48] But the connections between these two phenomenon - the targeted incarceration of particular racialised communities on the one hand, and a more general penal turn on the other - are more convoluted than that simple story of trialling-then-expanding.

The 1990s began with the 'high watermark of informed, liberal sentencing policy', the Criminal Justice Act 1991.[49] The last hurrah of four decades of postwar reformist policymaking, it called for prison to be reserved for the most serious offences and for community orders to play a full role in sentencing. It shifted seventeen year olds into juvenile courts, restricted the ability of judges to take prior convictions into consideration at sentencing and reduced the maximum term of imprisonment for non-domestic burglary and theft. By the summer of 1992, it had already reduced the number of immediate custodial sentences (especially for those with multiple prior convictions) and increased the use of fines and community sentences.[50] By 1993, the prison population was nearly 10 per cent down on its 1988 peak.

But all of those changes were soon wiped out as the Conservative and Labour parties rushed into a penal arms race. There were multiple reasons for this abrupt (but not totally unexpected) change of tack.[51] At the macro level, crime and fear of crime had

[48] BCA, Osamor/1, "Manifesto of the Movement for Civil Rights and Justice" (1987).

[49] Stephen Farrall, Naomi Burke, and Colin Hay, "Revisiting Margaret Thatcher's law and order agenda: The slow-burning fuse of punitiveness", *British Politics* 11.2 (2016), p. 216. See also Ian Loader, "Fall of the 'Platonic Guardians': Liberalism, Criminology and Political Responses to Crime in England and Wales", *The British Journal of Criminology* 46.4 (2006), pp. 561–586.

[50] *Monitoring of the Criminal Justice Act 1991 - Data from a special data collection exercise*, Home Office Statistical Bulletin, Issue No. 25/93 (September 1993).

[51] Will Jennings et al., "Moral Panics and Punctuated Equilibrium in Public Policy: An Analysis of the Criminal Justice Policy Agenda in Britain", *Policy Studies Journal* 48.1 (2020), pp. 207–234.

been growing steadily for nearly thirty years, peaking in the mid 1990s.[52] Specific fears were compounded by more diffuse feelings of insecurity and anxiety that followed the slow collapse of traditional social norms after the 1960s.[53] These disparate energies were then given direction by the development of an increasingly powerful law-and-order lobby within the media and Tory Party, and by the apparent "success" of this agenda in the United States.[54]

There were also more immediate political factors. After Labour's shock defeat in the 1992 General Election, it had come to accept most of Thatcher's economic agenda, leaving both parties searching for a new arena of political competition.[55] For Labour this was personified by Tony Blair, who was appointed Shadow Home Secretary in 1992 and, in conscious homage to Bill Clinton, was determined to prove his modern, third-way credentials by out-toughing the Tories on the question of law and order.[56] On the other side of the aisle, the Tory Prime Minister, John Major, had been rocked by the collapse of the pound on Black Wednesday and, sensing an opportunity after the tragic murder of James Bulger in February 1993, he moved to appoint a new, more populist Home Secretary who could call Blair's bluff.

This quickly became an explicit Tory strategy. In September 1993, the Chancellor Kenneth Clarke publicly predicted that Labour would soon retreat into 'vague stuff about

[52]Matteo Tiratelli, "Attitudes to Crime and Punishment in England and Wales, 1964–2023: A Reinterpretation of the 1980s and a Model of Interactions Between Concern, Punitiveness and Prioritization", *The British Journal of Criminology* (2024), azae058.

[53]Garland, *Culture of Control.*

[54]There was some electoral "success" but its impact on crime rates was much more ambiguous. Thomas Guiney and Stephen Farrall, "Governing against the tide: Populism, power and the party conference", *Theoretical Criminology* 27.1 (2023), pp. 147–164; Loïc Wacquant, *Punishing the Poor: The Neoliberal Government of Social Insecurity*, Durham, NC: Duke University Press, 2009, chapter 8.

[55]David Edgerton, *The Rise and Fall of the British Nation*, London: Allen lane, 2018, chapter 20.

[56]John Rentoul's hagiography, *Tony Blair* (London: Little Brown), published in 1995 (!) reports that 'Two months after Bill Clinton's presidential victory in November 1992, Gordon Brown and Tony Blair flew to Washington to visit Democratic campaign advisers. It was a visit which was to have a dramatic effect on Blair. Three days after he returned, he first used the phrase"tough on crime and tough on the causes of crime"'. Excerpted in John Rentoul, "Learning from Clinton, stealing from Thatcher", *The Independent* (1995). There are interesting historical ironies here. In the nineteenth century, prisons themselves were signifiers of "modernity" and "civilisation". For most of the twentieth century, it was the reduced use of prisons which was seen as "modern". But by the 1990s, support for mass incarceration had become the main way of signifying New Labour's break with the past. See Pratt, *Punishment and Civilisation.*

how this is all really a social problem'. Meanwhile, in a private memo, the deputy chairman of the Conservative Party argued that 'either Blair will support our proposals and divide his party, or oppose us and show he does not mean what he says about crime'.[57] But Blair didn't blink. He persuaded John Smith to back the Tories' reforms and, after becoming leader himself, pushed them to go further by claiming that 'New Labour has taken the mantle of the party of law and order in Britain today'.[58] Such was Blair's commitment to this issue that in 2000, safely ensconced in Number 10, he was still writing memos bemoaning the fact that 'we are perceived as soft' and ordering his cabinet to 'think now of an initiative, eg locking up street muggers. Something tough, with immediate bite, which sends a message through the system ... This should be done soon, and I, personally, should be associated with it'.[59]

But to understand how the prison boom worked in practice, we need to look at the flows that make up the criminal justice system. Between 1993 and 2000, there was no substantial change in the number of people being prosecuted, nor of the number of people being found guilty.[60] The number of people in prison on remand or recall barely changed.[61] And most importantly, crime itself fell dramatically.[62] What changed was the custody rate, which jumped from 15 to 25 per cent for indictable offences, with a similar increase for summary non-motoring offences. And the most immediate cause of this shift was new legislation.[63] This legislative U-turn began in April 1993 - two months after

[57]Both quoted in Nick Cohen, "How Blair put 30,000 more in jail", *New Statesman* (2002).

[58]Alan Finlayson and Judi Atkins, *British Political Speech*, (hereafter BPS) (available at https://www.britishpoliticalspeech.org/, accessed 18/09/2024), Tony Blair's speech to Labour Party Conference in October 1996.

[59]Quoted in Cohen, "How Blair put 30,000 more in jail".

[60]Proceedings for indictable offences grew from 478,800 to 512,700, while proceedings for summary non-motoring offences fell from 580,800 to 560,000. Guilty verdicts for indictable offences also grew from 243,500 to 287,100, while those for summary non-motoring offences fell from 451,700 to 431,700. Data from annual Criminal Judicial Statistics series, collected by the author.

[61]Home Office, Prison Statistics England and Wales 2002, Cmmd 5996: 1.4a Population in custody at 30 June by type of custody and sex, p. 20.

[62]Office for National Statistics, *Crime in England and Wales: year ending March 2023* (20 July 2023).

[63]It's worth noting that judges do not only respond to political diktats. A Home Office report from 1993 examined whether sentencing decisions in February of that year were influenced by 'media publicity on sentencing' and the widespread outrage at the murder of James Bulger. They found that, in just one month and long before any of the legislative changes outlined in this paragraph, the custody rate had already started to increase. See Home Office Statistical Bulletin, Issue No. 25/93: p. 3.

the murder of James Bulger - when the Home Secretary added a series of transformative amendments to a technical bill focussed on insider dealing and money laundering. In the measured words of Lord Windlesham:

> The Bill left the House [of Lords] in December [1992] with 40 clauses. It was before the Commons, apparently a Bill of low priority, for several months until the then Home Secretary, Kenneth Clarke, decided in the most remarkable turnabout (because of criticism from judicial sources and the magistracy, magnified by the tabloid press) to amend and in some cases to repeal provisions of the Criminal Justice Act 1991.[64]

The 207 government amendments in the final version of the Criminal Justice Act 1993 transformed that bill and the sentencing framework set down in 1991: reducing the use of fines, encouraging courts to take prior offences into account at sentencing, and pushing them into a greater reliance on prisons.[65] It was quickly followed by a Home Office circular revoking previous guidance encouraging the police to use cautions and by Michael Howard's famous "Prison Works" speech delivered at Tory Party Conference in October. Then came the Criminal Justice and Public Order Act 1994, the Offensive Weapons Act 1996, the Crime (Sentences) Act 1997, and the Crime and Disorder Act 1998 - all of which reinforced the sense that custodial sentences were the default option. The question is what role the long history of racially targeted incarceration played in this new legislative agenda. Was it, as activists from the 1970s to today have argued, yet another example of the state trialling its tools of coercion on racialised groups before expanding them to the other populations?

5.1 Justifying the penal turn

This question can be answered on two levels, the first ideological and the second structural. Narratives linking race and crime have a long history in Britain. By the nineteenth

[64] Parliamentary Debates (Lords), 548, 26 July 1993, 1025-1026.

[65] *Monitoring of the Criminal Justice Act 1991 and the Criminal Justice Act 1993 - Results from a special data collection exercise*, Home Office Statistical Bulletin, Issue No. 20/94, (July 1994).

century, the idea that the Irish were prone to violence was well-established, while the moral panic around garrotting had been linked to immigrants from southern Europe.[66] But despite this, the dominant view of crime at the time was that it was a *sui generis* phenomenon that demanded specific, technical policy solutions.[67] It was in the twentieth century that this started to change. In particular, during the 1950s, a moral panic around "vice" led the Home Secretary to circulate a memorandum to all chief constables asking about links between West Indian communities and 'the facts of illegitimacy' and 'brothel management'.[68] Although senior police officers denied that such links existed, this laid the foundation for the moral panic around "mugging" that began in the 1970s.[69] This new label put race right at the heart of discussions of crime and policing, creating a narrative of "black criminality" that grew increasingly dominant through the 1980s, holding up the United States as a terrifying vision of the future and positioning crime and anti-racist protest as two sides of the same "foreign" culture.[70]

But the major moral panics of the early 1990s - the "bail bandits" and rioters of Tyneside in 1991, the murder of James Bulger and the Llanharry killings in 1993 - were not described in the language of race.[71] Instead, politicians turned to an apocalyptic register of moral nihilism and societal breakdown. The most famous example of this is Blair's 'speech-cum-sermon' delivered just a few days after Bulger's death in February 1993, an event which decisively shifted the way crime was discussed:

> The news bulletins of the last week have been like hammer blows struck against the sleeping conscience of the country, urging us to wake up and look

[66]Gilroy, *There Ain't No Black*, chapter 3.

[67]Victor Bailey, "The fabrication of deviance:"dangerous classes" and "criminal classes" in Victorian England", in: *Protest and Survival: The Historical Experience, Essays for E.P. Thompson*, ed. by John G. Rule and Robert Malcolmson, London: Merlin Press, 1993, pp. 221–256. The most important racial element in this discourse came with positivistic criminology, a eugenicist tradition which saw criminals as a race of their own: Cesare Lombroso's *uomo delinquente*. See David Garland, *Punishment and Welfare: A History of Penal Strategies*, Vermont: Gower Publishing, 1985.

[68]Simon Peplow, "'Cause for Concern'? Policing Black Migrants in Post-War Britain (1945-68)", *Immigrants & Minorities* 40.1-2 (2022), pp. 177–209.

[69]Stuart Hall et al., *Policing the Crisis: Mugging, the State, and Law and Order*, London: Macmillan, 1978.

[70]Gilroy, *There Ain't No Black*, chapter 3.

[71]Brian Williams, "Bail Bandits: the construction of a moral panic", *Critical Social Policy* 13.37 (1993), pp. 104–112; Jacobson and Hough, "Missed Opportunities and New Risks".

> unflinchingly at what we see. We hear of crimes so horrific they provoke anger and disbelief ... These are the ugly manifestations of a society that is becoming unworthy of that name. A solution to this disintegration doesn't simply lie in legislation. It must come from the rediscovery of a sense of direction as a country and most of all from being unafraid to start talking again about the values and principles we believe in and what they mean for us ... We cannot exist in a moral vacuum. If we do not learn and then teach the value of what is right and what is wrong, then the result is simply moral chaos, which engulfs us all.[72]

These images became a mantra over the course of the 1990s. In 1993, the prime minister John Major blamed crime on a lack of 'values, dignity, pride, respect for their neighbours and, above all, respect of the old'.[73] That same year, Blair wrote that 'crime, ultimately, is a problem that arises from our disintegration as a community' .[74] By 1999, Blair was still warning that 'today, we feel our social fabric torn. Respect for law and order broken', while William Hague (the new Tory leader) called for a 'Common Sense Revolution for pensioners like Barbara Fitzjohn ... Scared to leave her home after dark. Terrified because she saw somebody get mugged and no one stopped to help'.[75] While there were occasional references to the multicultural "inner city", politicians paid far more attention to the importance of family life (for Blair the 'foundation of any decent society') and to the horror of young people being involved in crime.[76] These were images of the End Times: the innocence of youth replaced by feral nihilism, honest pensioners cowering in terror, families imploding through parental indifference and rampant individualism.[77]

Lurking behind these apocalyptic narratives was the idea of a social "underclass".[78]

[72]Newburn, ""Tough on Crime"", p. 438.
[73]BPS, John Major's speech to Conservative Party Conference 1993.
[74]Tony Blair, "Tony Blair on why crime is a socialist issue", *New Statesman* (1993).
[75]BPS, Blair and Hague's conference speeches from 1999.
[76]BPS, Blair's conference speech from 1995. See also his speeches from 1996 and 1997.
[77]See John Major's conference speeches from 1991, 1992 and 1994, Paddy Ashdown's from 1993, or Blair's from 1996 and 1998. All available from the BPS.
[78]Fred Robinson and Nicky Gregson, "The 'Underclass': a class apart?", *Critical Social Policy* 12.34 (1992), pp. 38–51; Paul Bagguley and Kirk Mann, "Idle Thieving Bastards? Scholarly Representations of

This concept originated in progressive American circles in the 1960s, before being popularised by the journalist Ken Auletta in the early 1980s and picked up by the New Right. Significantly, for American readers, it was always clear that the underclass referred to the black urban poor. But the reception of that term in Britain was somewhat different. In the 1970s, it had been used by scholars like Anthony Giddens and Paul Gilroy to refer to Britain's black and south Asian populations.[79] But it wasn't until the 1980s that the term really took off on this side of the Atlantic, with Thatcherite commentators using it as a cudgel against "state dependency" while figures from the centre-left repurposed it as a label for those left behind by Thatcherism.[80] And unlike in the United States, the British underclass always referred to a much broader section of the population. Ralph Dahrendorf's violent descriptions of the underclass as a 'cancer' that threatened the 'moral hygiene of British society' did include immigrants, but also the young, the old and drop outs.[81] Labour politician Frank Field used the term to refer to elderly pensioners, lone parents on social security and the long-term unemployed.[82] Charles Murray, the *éminence grise* of the American New Right, located the British underclass in presumptively white Birkenhead and Easterhouse.[83] In fact, in Britain, the language of the underclass was most often used to make crime and violence a particular problem for young, white men.[84] But rather than seeing these "yobs" as emblematic of whiteness in general, it was their youth and their poverty that was used to explain their supposed immorality. As has been noted in many other contexts, the whiteness of the British underclass was rendered invisible, irrelevant, unremarkable.[85]

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the 'Underclass'", *Work, Employment and Society* 6.1 (1992), pp. 113–126; Kirk Mann, "Watching the defectives: Observers of the underclass in the USA, Britain and Austialia", *Critical Social Policy* 14.41 (1994), pp. 79–99; Ruth Lister, "In Search of the 'Underclass'", in: *Charles Murray and the Underclass: The Developing Debate*, ed. by Ruth Lister, IEA Health and Welfare Unit, 1996, pp. 1–16.

[79]Mann, "Watching the defectives", p. 86.

[80]Robinson and Gregson, "The 'Underclass': a class apart?", pp. 42–43.

[81]Quoted in Lister, "In Search of the 'Underclass'", p. 10.

[82]Frank Field, *Losing Out: Emergence Of Britains Underclass*, Oxford: Wiley–Blackwell, 1989.

[83]Charles Murray, "The Emerging British Underclass", *The Sunday Times Magazine* (1989); Charles Murray, "Underclass: The Crisis Deepens", *The Sunday Times Magazine* (1994).

[84]Bagguley and Mann, "Idle Thieving Bastards?", pp. 117–119; Robinson and Gregson, "The 'Underclass': a class apart?", pp. 443–444.

[85]George Yancy, *Look, a White! Philosophical Essays on Whiteness*, Philadelphia: Temple University Press, 2012.

Ultimately, this discourse about the British underclass probably owed less to contemporary American examples and more to the Victorian notion of the "dishonest poor" (what Charles Booth called the "vicious, semi-criminal" lower classes).[86] That is not to say that this older discourse was entirely free from racial thinking: Henry Mayhew referred to "tribes" and "races" in his study of nineteenth century London, while John Bright's urban "residuum" of the 1860s was explicitly Irish.[87] But the particular "races" being referred to have clearly changed over time. Indeed, in the 2000s, the referent shifted again, as the politics of crime returned to the "inner city" and racialised images of "gangs" and "knife crime" became central features of contemporary British politics.[88] But in retrospect, the 1990s mark something of a break in the ideological identification of crime with blackness. That is not to say that race disappeared from public life or from debates about criminal justice but rather that, for a brief period in the 1990s, it was subsumed within a wider fear of social collapse and the destitute underclass. Poverty, individualism, lack of aspiration and respect for authority provided the content for a moralising discourse that made all of society responsible for the rise in crime and that attempted to enlist everyone in a punitive campaign against it.

5.2 The political functions of mass incarceration

Moving beyond questions of ideology and legitimacy, other writers have suggested that there might be structural connections between the drive towards custodial sentences and race, connections rooted in (i) political repression, (ii) the oppression of particular racialised groups, (iii) processes of brutalisation, and (iv) the exigencies of the border system. Starting with repression, the radical political organisations cited above had repeatedly argued that, at times of crisis, the state would experiment on marginalised and racialised groups before deploying those new coercive techniques against the whole work-

[86] Murray, "The Emerging British Underclass".

[87] Bill Luckin, "Revisiting the idea of degeneration in urban Britain, 1830–1900", *Urban History* 33.2 (2006), pp. 234–252.

[88] Gargi Bhattacharyya et al., *Empire's Endgame: Racism and the British State*, London: Pluto Press, 2021.

ing class. And during the 1970s and 1980s black political organisations *were* targeted by the state's repressive apparatus. But by 1993, the crisis of legitimacy diagnosed by Stuart Hall fifteen years earlier had come to an end. Protests and industrial strife had sunk to very low levels, the new Thatcherite political settlement had been firmly established, and economic growth had recovered. There were no serious threats to the state or to the dominant economic order.[89] There was, in short, no obvious reason why the state would introduce a new wave of political repression at this moment.

Another structural connection can be drawn out of those histories of the United States that see mass incarceration as an attempt to use prisons to rebuild and reinforce ethno-racial divides.[90] In these accounts, the increase in the overall level of incarceration was a side-effect of a targeted campaign against black communities ("collateral damage" in Michelle Alexander's words). But it's hard to fit this story to Britain's penal turn. Although incarceration rates went up for all groups during the 1990s (see Figure 2), the level of disproportionality actually fell. In 1990, "black" folk were 7.5 times more likely to be in prison that their "white" counterparts, but by the end of the decade that number had fallen to 5.6, and by 2023 it was 3.3. These are obviously crude categories and it's important to note the changing composition of the black community over this period, which shifted from largely West Indian heritage to majority African. Reports at this level of granularity are not routinely available from the Home Office and, because the categories are much smaller, the data is much more volatile. But some information does exist for the period 1993 to 2000. This data suggests that people of "West Indian" heritage experienced higher rates of imprisonment than those of "African" descent and it provides some limited support for the claim that the disproportionate targeting of "West Indian"

[89]See for example: The Social, Political and Economic Event Database Project's counts of episodes of 'civil strife' [Peter F. Nardulli, Scott L. Althaus, and Matthew Hayes, "A Progressive Supervised-learning Approach to Generating Rich Civil Strife Data", *Sociological Methodology* 45.1 (2015), pp. 148–183]; David Bailey's dataset of UK protest events [David J Bailey, "Contending the crisis: What role for extra-parliamentary British politics?", *British Politics* 9.1 (2014), pp. 68–92]; or the Office for National Statistics' 'Labour disputes; working days lost due to strike action', Series ID: BBFW (10 September 2024).

[90]Wacquant, "The New 'Peculiar Institution'"; Wacquant, "Deadly Symbiosis"; Alexander, *The New Jim Crow*.

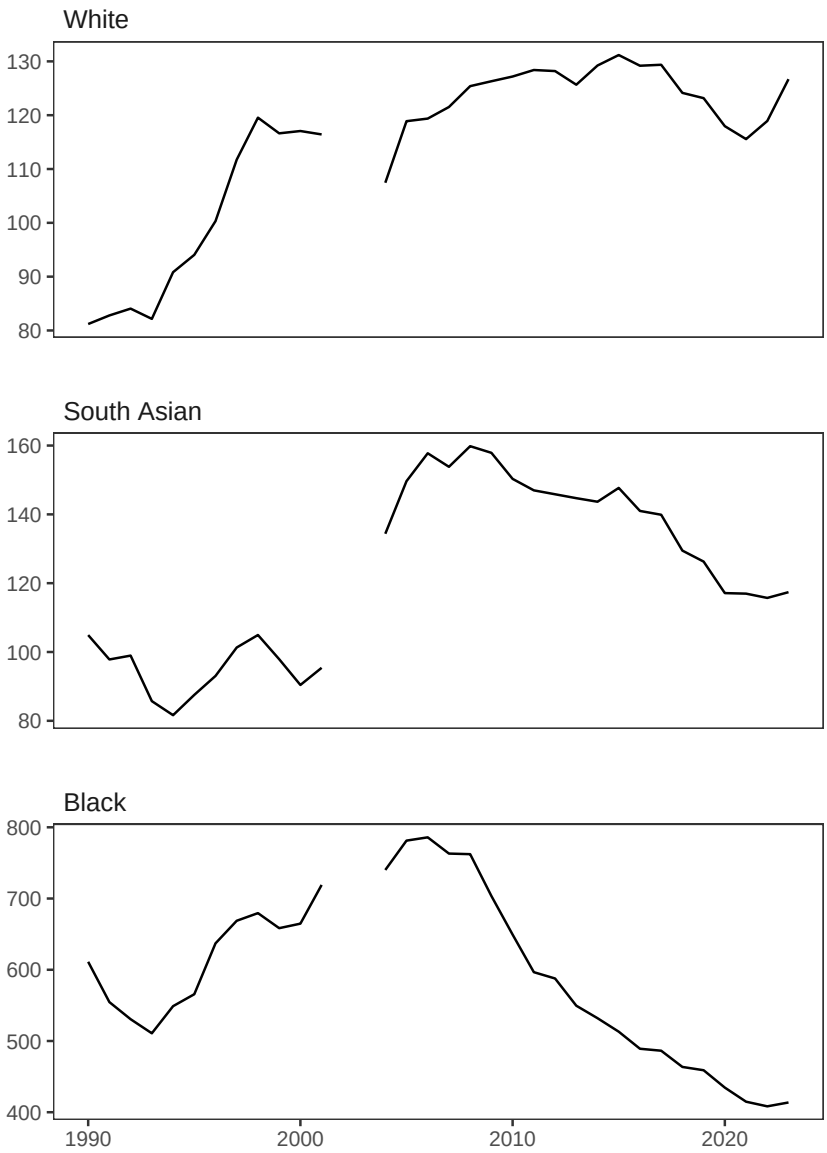

Figure 2: Incarceration rates per 100,000 in England and Wales, 1990-2023

folk worsened during this period.[91] But this data needs to be treated with caution and, more importantly, the shifts are not large enough to support the idea that the generalised growth of the prison system was simply "collateral damage" from a targeted assault on Britain's West Indian communities.

A more subtle link between hyper-incarceration and mass-incarceration can be found in Aimé Césaire's writings on colonialism. Writing in the aftermath of the Holocaust,

[91]Due to changes in the available data, I have had to construct two separate, non-comparable time series for the ratio of "West Indian" to "white" incarceration rates. From 1993 to 1996, the annual ratio goes from 6.6, to 6.4, then 6.4, and then 7.0. From 1997 to 2000, it goes from 7.1, to 7.7, 7.5, and 9.1.

Césaire argued that acts of violence and coercion 'work to decivilize the coloniser, to brutalise him', concluding that 'it is not the head of a civilization that begins to rot first. It is the heart'.[92] Analogously, one could argue that the defeat of liberal approaches to carceral politics owed something to the earlier hyper-incarceration of black Britons. On the one hand, it is demonstrably true that the 1980s saw the gradual exhaustion of alternative approaches to law and order - by the early 1990s, targeting the overall level of the prison population was no longer seen as a viable option, leftist antipathy to personal moral responsibility was swept out of the Labour Party, and political interventions in individual sentencing decisions were no longer constitutional taboo - all of which left the door open for more punitive approaches. Part of this defeat was no doubt due to the steady increase in crime (and fear of crime) through the 1980s and early 1990s. But it also seems likely that, as time wore on, politicians and policymakers who had gotten used to being "tough" on some communities found it harder to resist generalising that approach.

But it nevertheless remains very difficult to provide direct evidence for desensitisation. One area which can be easily tested is the sentencing decisions of judges. If this kind of desensitisation was happening on a large scale then you might expect to see a more pronounced shift in custody rates in the metropolitan areas where Britain's black communities were concentrated. But there is no clear pattern in the data. The areas which saw the largest increases in custody rates were relatively rural and affluent (Warwickshire and Thames Valley), while the metropolitan hubs of London, Greater Manchester and Merseyside had custody rates pretty close to the average for the rest of England throughout this period. Of course, desensitisation does not just apply to judges and the most important driver of the carceral turn was legislative rather than judicial, but it remains to be proven that the habits of mind engendered by the incarceration of black Britons during the 1970s and 1980s helped to desensitise our political class.

Another point of connection can be found in the relationship between prisons and

[92]Césaire, *Discourse on Colonialism*, pp. 35, 48

the border system. Over the last thirty years, states around the world have moved to fortify, diversify and expand their tools of bordering and deportation.[93] It seems plausible, therefore, that the prison system may have expanded in order to support the wider infrastructure of the British border: acting as the first stage of deportation for those convicted of criminal offences, and helping to detain those living in Britain without the correct permissions. This is a key part of Wacquant's argument that the incarceration of 'foreigners and quasi-foreigners' during Europe's neoliberal transition mirrors the experience of African Americans.[94] Wacquant finds the empirical foundation for this argument in a Council of Europe report comparing the proportion of foreigners in European prisons in 1985 with the figures for 1995.[95] There are, however, serious reasons to doubt the accuracy of those numbers, at least for England and Wales. The underlying data is based on a series of questionnaires sent to member states' prison departments between 1981 and 2006. Unfortunately, the British state did not start compiling regular data on foreign national offenders until the 1990s and the notes to the data tables explain that the earlier figures are 'an estimate' without elaborating on how that estimate was produced. More worryingly, the definition of foreigner used in the questionnaires seems to have changed dramatically. Before 1991, the definition was extremely narrow: only those born outside the United Kingdom, Ireland, *the Commonwealth and other 'associated countries (e.g. Pakistan)*' counted as foreign.[96] After 1991, it switched to a more traditional definition where 'all prisoners who do not have British nationality' were recorded as foreigners. Unsurprisingly, this causes the estimate to shoot up from 1.4 to 7.1 per cent in just 12 months.[97]

This makes it difficult to determine whether the number of foreign national prisoners

[93]Luke de Noronha, *Deporting Black Britons: Portraits of deportation to Jamaica*, Manchester: Manchester University Press, 2020, chapter 1.

[94]Loïc Wacquant, "Suitable Enemies: Foreigners and Immigrants in the Prisons of Europe", *Punishment & Society* 1.2 (1999), pp. 215–222; Loïc Wacquant, "'Enemies of the Wholesome Part of the Nation': Postcolonial Migrants in the Prisons of Europe", *Sociologie* 1.1 (2005), pp. 31–51.

[95]Wacquant, "Enemies of the Wholesome Part", p. 35. The original data is European Committee on Crime Problem, *Draft Recommendation No. R(99)... concerning prison overcrowding and prison population inflation*, CM(99)118 Addendum 1, 1999, Table 6.

[96]Council of Europe, Prison Information Bulletin, No. 3, June 1984: p. 28.

[97]Council of Europe, Penological Information Bulletin No. 17, December 1992: p. 24.

was increasing during the 1980s. But by 1993, they made up 7.8 per cent of prisoners (slightly more than twice their proportion of the population at large) and this number crept up over the rest of the decade.[98] The key question is whether or not this reflected the prison system's growing role within the British border. Starting with deportations, there were 7,000 enforced returns and around 5,000 immediate custodial receptions of foreign nationals in 1999.[99] This could suggest that prisons were central to the deportation regime, but it seems extremely unlikely that all those foreign nationals were deported. Comprehensive data is only available from 2006, but at that point "foreign national offenders" accounted for just 15 per cent of enforced returns. The second border function played by prisons is to detain people whose only offence is to have broken some law governing migration and mobility. By 1999, 2,500 people a year were being incarcerated under immigration laws. But specialist immigration detention centres have always held many more people than prisons and during the 1990s, only around 1 per cent of the prison population at any given time was held under Immigration Act powers.

To sum up, there it little evidence to support the idea that the prison boom of the 1990s was justified in the specific language of "black crime", nor that it was a repressive response to some hegemonic crisis, nor that it was "collateral damage" from a project to target black Britons. And while some of the growth of the prison system might be connected to a wider fortification of the British border, it's unlikely to have been the leading factor. But race nevertheless haunts many different aspects of the penal turn. It's there in the images and tropes that gave meaning to the panic around crime, in the ongoing targeting of Britain's West Indian communities, and in the exhaustion of progressive alternatives through the gradual brutalisation of the British state. Race might never have been the ordering principle of the penal system as a whole, but it remained a significant presence throughout this period.

[98] *The Ethnic Origins of Prisoners: Ethnic composition of prison population 1985 to 1993; Study of population on 30 June 1990 and persons received in 1990*, Home Office Statistical Bulletin, Issue No. 21/94 (August 1994).

[99] Noronha, *Deporting Black Britons*, chapter 1.

6 Conclusion

This account of Britain's penal turn unsettles the ruptural histories that dominate mainstream criminology. But it also doesn't fit neatly into the sequential narrative of trialling-then-expanding that is common in more radical accounts of the prison system. Instead, hyper-incarceration and mass-incarceration seem to have been separate projects, sometimes running in parallel, at other moments combining in unpredictable ways. On the one hand, this suggests that there is no *necessary* connection between the two phenomena. During the 1970s and 1980s the British state built a vicious carceral regime for black Britons, with high incarceration rates and targeted abuse inside the prison walls. But this was also a period which saw a pronounced deceleration in the growth of the overall prison system and some of the most radical attempts at prison reform since World War II.[100] This history is also an awkward fit for the claim that there has always been a *direct* connection between the authoritarianism of the British state and its racism. Borders, police and prisons are different institutions, with different histories, targets and logics. And while race has been an animating presence in all three, its operations are often more obscure and convoluted than the simple equation, post-imperial racism = state authoritarianism.[101]

On the other hand, there *are* moments when hyper-incarceration and mass-incarceration seem to reinforce one another. Interestingly, the links described above support Césaire's fears about generalised moral and affective brutalisation over Foucault's focus on the transfer of specific 'apparatuses, institutions, and techniques of power'.[102] They also have a more complicated geography than the now orthodox "boomerang" metaphor can really handle. For one, the significance of the New Democrats as an inspiration for Tony Blair suggests that Britain's position within the American empire was more important than

[100]You could tell a similar story about the hyper-incarceration of Irish people in Britain during the great decarceration of the 1920s and 1930s.

[101]Elliott-Cooper, *Black Resistance*; Bhattacharyya et al., *Empire's Endgame.*

[102]Césaire, *Discourse on Colonialism*; Michel Foucault, *"Society Must Be Defended": Lectures at the Collège de France, 1975-1976*, New York: St. Martins Press, 2003.

its own (post-)imperial networks.[103]

Finally, this history has implications for the wider historiography of modern Britain. In the last few years, the orthodox narrative of Postwar Consensus, Crisis, then Neoliberalism has come under sustained attack.[104] And penal history offers a particularly acute challenge to that trilogy. First, it is difficult to square massive increases in incarceration (see Table 2) with some of the more utopian visions of the Postwar Consensus. As the abolitionist group Radical Alternatives to Prison (RAP) wrote, 'the phenomenal growth of the British prison system since the end of the Second World War, during the time we were supposed to have been a Welfare State, leaves no room for complacency'.[105] Second, as described above, the Crisis of the 1970s triggered a twenty year *deceleration* in the growth of the prison system and a move towards "community sentences" of various kinds.[106] If Britain was moving towards a more coercive and authoritarian mode of governance at this time, then it was not synchronised across the various branches of the state.

This account also challenges the traditional periodisation of Neoliberalism. It is important to acknowledge that neoliberalism was an actually existing political project - a counter-revolution of capital against the Keynesian state and the popular mobilisations of the 1970s[107] - and that within this project, mass incarceration played a significant role: helping to repress political threats, remodel the state, and absorb the various surpluses produced by economic restructuring.[108] But different elements of that project arrived

[103]Wacquant, *Punishing the Poor*, Part IV: European Declinations.

[104]Florence Sutcliffe-Braithwaite, Aled Davies, and Ben Jackson, "Introduction: a neoliberal age?", in: *The Neoliberal Age?: Britain since the 1970s*, ed. by Florence Sutcliffe-Braithwaite, Aled Davies, and Ben Jackson, London: UCL Press, 2021, pp. 1–29; Liam Liburd, "The Politics of Race and the Future of British Political History", *The Political Quarterly* 94.2 (2023), pp. 244–250; Amy C. Offner, *Sorting Out the Mixed Economy: The Rise and Fall of Welfare and Developmental States in the Americas*, Princeton: Princeton University Press, 2019.

[105]BCA, RC/RF/17/01, Radical Alternatives to Prison, *A memorandum to the Inquiry into the United Kingdom Prison Services* (May 1979).

[106]Stan Cohen, *Visions of Social Control: Crime, Punishment and Classification*, Cambridge: Polity Press, 1985.

[107]Harvey, *A Brief History of Neoliberalism*; Melinda Cooper, *Counterrevolution: Extravagance and Austerity in Public Finance*, Princeton: Princeton University Press, 2024.

[108]In order: Christian Parenti, *Lockdown America: Police and Prisons in the Age of Crisis*, New York: Verso, 2000; Wacquant, *Punishing the Poor*; Gilmore, *Golden Gulag*.

piecemeal, in various contradictory combinations. In particular, the hyper-incarceration of black and Irish communities came early in the 1960s and 1970s, while mass-incarceration was delayed until the 1990s, leaving the 1980s as an uncertain interlude of contestation and contradiction.[109] In fact, the synthesis of neoliberalism's various coercive practices finally arrived with New Labour, whose relentless pursuit of tougher penal policies marked a break with Thatcher, just not a progressive one. (Indeed, Blair's embrace of penal populism presents a serious obstacle to the claim he reinvented social democracy in the modern language of 'rights'.[110]) This piecemeal process suggests that, as James Vernon found in his study of Heathrow Airport, neoliberalism arrived in Britain as a 'convergence or articulation of different elements with overlapping temporalities and periodizations', not a definitive rupture.[111]

In sum, this history of the prison system warps the orthodox narrative of postwar Britain, destabilising the orderly procession of discrete stages. But it also opens up alternative political perspectives. To return to RAP one last time: 'Imprisonment is used most in those societies which value freedom least and the growth of a prison system is the sharpest indicator of the political direction which a society is taking.'[112]

[109]Tiratelli, "Attitudes", pp. 393–394; Alan Norrie and Sammy Adelman, "'Consensual Authoritarianism' and Criminal Justice in Thatcher's Britain", *Journal of Law and Society* 16.1 (1988), pp. 112–128.

[110]Colm Murphy, *Futures of Socialism: 'Modernisation', the Labour Party, and the British Left, 1973–1997*, Cambridge: Cambridge University Press, 2023. Although Murphy does concede that race was 'a telling absence' (Chapter 4), he does not mention prisons once, mentions crime only fleetingly, and discusses the police mostly in the context of anti-racist groups outside of the Labour Party. There were similar omissions in contemporaneous defences of Blair, e.g. Anthony Giddens, *The Third Way: The Renewal of Social Democracy*, Cambridge: Polity Press, 1999. Blair himself was much more candidly authoritarian: 'But to those who say [the tough on crime agenda is] a threat to our civil liberties, I say the threat to civil liberties is of women afraid to go out, and pensioners afraid to stay at home, because of crime and the fear of crime' (BPS, Blair's conference speech from 1997).

[111]James Vernon, "Heathrow and the Making of Neoliberal Britain", *Past & Present* 252.1 (2021), p. 216.

[112]Radical Alternatives to Prison, *A memorandum.*